Re: ART Applications

- Vida Reid v Commissioner of the NDIS Quality and Safeguards Commission **(No. 2023/3361)**

- Forward Focused Group Pty Ltd v Commissioner of the NDIS Quality and Safeguards Commission **(No. 2023/4494)**

Karlie Dickinson -Senior Lawyer -Australian Government Solicitor **Your Letter Dated 19 March 2025Ms**

By email: karlie.dickinson@ags.gov.au

Attention: Tribunal Members

Dear Ms. Dickinson,

I write again regarding the inconsistencies in the NDIS Commission's position as it relates to any purported "ongoing investigation," particularly in light of the dropped charges that originally formed the core rationale for my banning order. While you confirm that the Commissioner has asked the NDIA about investigations, no steps have been taken by the Commission to revisit or lift my ban despite the changed circumstances.

Below I outline why a stay of these proceedings remains essential, especially as new evidence from the tender bundle confirms the Commission's own delegate stated that the ban would be reconsidered if criminal charges were dropped.

1. Direct Quotations from the Tender Bundle

During my internal review (21 April 2023), Ms. Sian Leathem (delegate of the Commissioner) explicitly linked the entire merit of the ban to the existence of criminal charges. Some examples, as recorded in the tender bundle:

A. "The Commission's belief in Ms. Reid's unsuitability is strongly reinforced by the criminal charges currently laid against her, indicating serious alleged dishonesty."

B. "Should those charges be dismissed or withdrawn, the Commission would be prepared to reconsider the banning order, given that the charges significantly underpin the unsuitability ground."

These remarks show that unsuitability (under s 73ZN(2)(a)(iii)) was justified based on the commissions views predominantly on the existence of charges at that time. Indeed, Ms. Leathem highlighted that continued investigations and possible prosecution by law enforcement buttressed the entire rationale for the ban.

2. Despite those statements from Ms. Leathem, the criminal charges against me were dropped in February 2024—over a year ago. Yet:

A) The Commission has neither rescinded nor modified my ban, even though the primary basis was the presence of "serious" charges.

B) The Commission has not issued any formal statement explaining why it now refuses to revisit the ban, despite having explicitly acknowledged it would do so if the charges no longer existed.

3. This silence is particularly concerning given that your 19 March 2025 letter states NDIA confirmed "no current investigation." If the Commission's original foundation (ongoing charges/investigations) has collapsed, **what is the continuing justification for my ban?**

"The Commission's delegate expressly declared that "if criminal charges are dropped, we can reconsider the ban." Yet after these charges indeed were dismissed, the Commission has made no acknowledgment of changed circumstances. This raises serious doubts about procedural fairness. An administrative decision-maker who ties a ruling to a specific factual premise must re-evaluate when that premise disappears. Failing to do so creates an unfair situation for me, especially as a self-represented party.

Furthermore, the NDIS Commission once argued for caution and possible delay based on continuing law enforcement interest. Now it effectively denies any investigation remains, but the ban is still in place, unchanged, defying its own earlier stance.

4. Renewing My Request for a Stay

Given these contradictions, I respectfully request that the Administrative Review Tribunal grant a stay of my review proceedings until:

A) The Commission comprehensively clarifies that no criminal or fraud-related agency (within or beyond NDIA) is conducting investigations.

B) The Commission acknowledges evidence in it's possession such as statements made via Ms. Leathem at the NDIS Commission that the ban "would be reconsidered if charges are dropped" and explains why it has not taken any remedial action to lift or revise the ban.

C) Failing that, it may be considered prudent in the interest of natural justice for the tribunal to make a decision to over-turn the banning order in it's entirety based on the evidence in it's possession and information in these papers.

Pushing forward without first resolving these conflicting positions risks an unfair and premature hearing. As the Commission itself originally recognized in Ms. Leathem's words, the ban's legitimacy was contingent on pending charges—charges which no longer exist.

5. Preference for Written Communications & Tribunal Oversight

I note again your invitation to "contact us to discuss" the matter outside of writing. As a self-represented party, I insist on written communications to avoid any ambiguity or informal statements that could later be incorrectly/wrongly reinterpreted. Given the Commission's shifting accounts, aggressive, unethical investigations and hostile approach to me and my family, a clear paper trail is critical for my protection and to **maintain the Tribunal's trust** in the integrity of this process. To date it appears that the Commission with the assistance and involvement of Miss Dickinson and the utilization of the AGS as a vehicle, has sought and attempted to mislead the Tribunal. These actions appear calculated and malicious to compound the ongoing injustice and trauma inflicted upon our family.

I also request that the Tribunal actively enforce and supervise these disclosures. It is essential for the Tribunal to confirm that the Commission's "no investigation" statements extend to all members of the NDIS Fraud Fusion Taskforce, not solely the NDIA, and that the Commission accounts for the dropped charges in reconsidering my ban.

The Commission's own internal review record (cited above) reveals that the entire "unsuitability" basis for my ban revolved around allegations now obviated by dismissed charges. If the Commission remains consistent with its delegate's words, it should by rights revisit or revoke the ban. Since it has not, I urge the Tribunal to impose a stay until these matters are conclusively addressed.

I appreciate your prompt written response to each point in this letter. Please note I reserve all rights to pursue judicial review and/or other remedies if I am compelled to proceed under this unresolved state of affairs.

Kind Regards,

Vida Reid